IN THE UNITED STATES COURT OF INTERNATIONAL TRADE

THE STATE OF OREGON, THE STATE OF ARIZONA, THE STATE OF COLORADO, THE STATE OF CONNECTICUT, THE STATE OF DELAWARE, THE STATE OF ILLINOIS, THE STATE OF MAINE, THE STATE OF MINNESOTA, THE STATE OF NEVADA, THE STATE OF NEW MEXICO, THE STATE OF NEW YORK, and THE STATE OF VERMONT, Plaintiffs, v. DONALD J. TRUMP, in his capacity as President of the United States; DEPARTMENT OF HOMELAND SECURITY; KRISTI NOEM, in her official capacity as Secretary of the Department of Homeland Security; UNITED STATES CUSTOMS AND BORDER PROTECTION; PETER R. FLORES, in his official capacity as Acting Commissioner for U.S. Customs and Border Protection; and THE UNITED STATES, Defendants.	Case No. 1:25-cv-00077-GSK-TMR-JAR DECLARATION OF GREGORY SHABRAM (In support of Plaintiffs' Motion for Preliminary Injunction)

I, Gregory Shabram, declare as follows

1. I am over the age of 18, competent to testify as to the matters herein, and testify based on personal knowledge, records kept in the ordinary course of business at the University of Oregon, and information I learned from university personnel whose work I rely upon and who have assisted me in gathering this information from our institution.

2. I am the Chief Procurement Officer at the University of Oregon. As the Chief Procurement Officer, I oversee all transactions for non-construction related goods and services purchased by the University.

3. In this role I manage a team authorized by University of Oregon Policy to sign contracts and issue purchase orders for goods and services, including goods and equipment manufactured overseas and then delivered directly to the University.

A. Tariff impacts to specially ordered scientific equipment

4. In the regular course of its operations, the University of Oregon routinely purchases many goods that originate from sources outside the United States. One category of those goods is specially ordered scientific equipment. The following is an example of purchased equipment that has been impacted by tariffs.

5. First, the University of Oregon's Center of Optics purchased a cryogenic single photon counting detector system from ID Quantique, Inc., a company based in Switzerland. The University issued the purchase order on November 8, 2024, at which time there was no tariff against imports from Switzerland.

6. IDQ shipped the cryogenic system from Switzerland on April 8, and the cryogenic system arrived on April 10. At arrival, the tariff rate for imports from Switzerland was 10 percent.

7. For import purposes, the value of the cryogenic system was $185,798. As the importer of record, the University was assessed an import duty of $18,579, which was paid on its behalf by its customs broker to allow release and delivery of the cryogenic system.

8. Attached as **Exhibit A** is a true copy of the entry summary provided by the U.S. Customs and Border Protection to the University's customs broker for the cryogenic system.

9. That is only one example of tariffs that the University expects to pay under the tariff orders issued by the President. Attached as **Exhibit B** is a spreadsheet of large purchases currently in process that will likely be subject to those new tariffs, should they remain in place. For each of those purchases, the tariffs are an unexpected additional cost that the University could not reasonably expect when it initially budgeted for those items.

10. As indicated in that spreadsheet, many of the goods involved in those purchases have not yet arrived at a port of entry. It is likely, either because the University of Oregon is the importer of record, or because vendor will pass on costs to the University of Oregon, that the University of Oregon will be required to pay the new tariff costs to have U.S. Customs and Border Protection release those goods.

11. The purchases described in **Exhibit B** are only a selection of the purchases that will be impacted by tariffs. The university is still assessing the impact of tariffs and expects to identify additional similar purchases in the coming months.

12. For some of those purchases, the substantial increase in costs due to tariffs will require departments to identify additional funds to ensure delivery of the purchased items.

13. For example, the University's Materials Science Institute is purchasing a transmission electron microscope from Corrected Electron Optical Systems GmbH, a German manufacturer. The purchase price of the equipment is about $1 million. At the current 10 percent tariff levied against goods from Germany, the import duty will be about $100,000. The Materials Science Institute is still attempting to identify funding to cover those additional tariff costs.

B. The President's constantly shifting tariff policy impairs the University of Oregon's ability to accurately budget for critical research equipment and other goods for Fiscal Year 2026.

14. To ensure responsible financial planning, each department at the University of Oregon sets a budget every fiscal year. These budgets are used, not only to ensure fiscal responsibility, but also to apply for grants from both public and private sources to fund this critical research equipment.

15. The University is currently setting the budget for Fiscal Year 2026 and University researchers are regularly applying for grants based on that budget.

16. The President's repeated imposition, modification, suspension, and threatening of various tariffs has created substantial uncertainty regarding the expected cost of a wide range of

goods and services making it much harder allocate resources and make investments in the University's research equipment and represent budgets accurately when applying for grants.

17. For example, the University of Oregon's Robert and Beverly Lewis Center for Neuroimaging is a core service that operates two MRI machines used by many University researchers conduct research in humans. These MRI machines are made by Siemens in Germany. One of these MRI machines is reaching its end of life. The Lewis Center makes long-term investments in these machines, expecting them to support research over more than a decade. The lead time for a new MRI machine is at least three to six months. Given the variability and uncertainly in the President's tariff policies, the Lewis Center is unable to budget for this purchase and may need to operate a reduced capacity if the end-of-life MRI machine is decommissioned. Such a reduction in capacity would slow University researchers' ability to conduct their research and meet the requirements of their grant contracts.

18. The President's use of emergency powers to repeatedly impose and change tariffs thus makes it difficult for the university to accurately plan its budgets for research equipment for the upcoming fiscal year. To account of the uncertainty of future tariff costs, the university and its departments will need to increase the amount of funding set aside for tariff contingencies. As a result, the university will necessarily need to reduce investments in some research equipment, reducing the capabilities and productivity of our researchers.

I declare under penalty of perjury under the laws of the United States that, to the best of my knowledge, the foregoing is true and correct.

Executed on May 5, 2025, at Eugene, Oregon



Gregory Shabram
Chief Procurement Officer
University of Oregon

ACE Version: 001.00
HBS

DEPARTMENT OF HOMELAND SECURITY
U.S. Customs and Border Protection
ENTRY SUMMARY

OMB APPROVAL NO. 1651-0022
EXPIRATION DATE 03/31/2025

1. Filer Code/Entry No.	2. Entry Type	3. Summary Date	4. Surety No.	5. Bond Type	6. Port Code	7. Entry Date
9PS 1163908-9	01 ABI/A	04/10/2025	054	8	2910	04/10/2025

8. Importing Carrier	9. Mode of Transport	10. Country of Origin	11. Import Date
LH	40	CH	04/10/2025

12. B/L or AWB No.	13. Manufacturer ID	14. Exporting Country	15. Export Date
02035564605	CHIDQSA3CAR	CH	04/08/2025

16. I.T. No.	17. I.T. Date	18. Missing Docs	19. Foreign Port of Lading	20. U.S. Port of Unlading
02035564605	04/10/2025			3029

21. Location of Goods/G.O. No.	22. Consignee No.	23. Importer No.	24. Reference No.
WBU8 FLT: 490	SAME	46-472780000	

25. Ultimate Consignee Name and Address

City State OR Zip

26. Importer of Record Name and Address
UNIVERSITY OF OREGON
1505 FRANKLIN BLVD
City EUGENE State OR Zip 97403

27. Line No.	28. Description of Merchandise / 29. A. HTSUS No. B. AD/CVD Case No.	30. A. Gross Weight B. Manifest Qty.	31. Net Quantity in HTSUS Units	32. A. Entered Value B. CHGS C. Relationship	33. A. HTSUS Rate B. AD/CVD Rate C. IRC Rate D. Visa No.	34. Duty and I.R. Tax Dollars	Cents
	M 02035564605 H 4001150333			NOT RELATED	2 CTN		
	INVOICE 00001						
001	OTHR N/EL INST:USING OPT R 9903.01.25						
	9027.50.8060	179	17NO	175798 C426	10%	17579.80	
	MERCHANDISE PROCESSING FEE				0.3464%	608.96	
				-------		----------	
				175798	CARRIED FORWARD	18188.76	

Other Fee Summary for Block 39
MPF 499 634.62

35. Total Entered Value
$ 185,798.00

Total Other Fees
$ 634.62

CBP USE ONLY

A. LIQ CODE	B. Ascertained Duty	37. Duty
		18579.80
REASON CODE	C. Ascertained Tax	38. Tax
	D. Ascertained Other	39. Other
		634.62
	E. Ascertained Total	40. Total
		19214.42

TOTALS

36. DECLARATION OF IMPORTER OF RECORD (OWNER OR PURCHASER) OR AUTHORIZED AGENT

I declare that I am the ☐ importer of record and that the actual owner, purchaser, or consignee for CBP purposes is as shown above, **OR** ☒ owner or purchaser or agent thereof. I further declare that the merchandise ☒ was obtained pursuant to a purchase or agreement to purchase and that the prices set forth in the invoices are true, **OR** ☐ was not obtained pursuant to a purchase or agreement to purchase and the statements in the invoices as to value or price are true to the best of my knowledge and belief. I also declare that the statements in the documents herein filed fully disclose to the be of my knowledge and belief the true prices, values, quantities, rebates, drawbacks, fees, commissions, and royalties and are true and correct, and that all goods or services provided to the seller of the merchandise either free or at reduced cost are fully disclosed.
I will immediately furnish to the appropriate CBP officer any information showing a different statement of facts.

41. DECLARANT NAME	TITLE	SIGNATURE	DATE
Clearpoint International	A.I.F.		04/10/2025

42. Broker/Filer Information (Name, address, phone number)
Clearpoint International
1111 Corporate Center Drive
103
Monterey Park, CA 91754 310-488-8458

43. Broker/Importer File No.
1163908

CBP Form 7501 (5/22)

EDITRADE

RECORD

OMB APPROVAL NO. 1651-0022
EXPIRATION DATE 03/31/2025

DEPARTMENT OF HOMELAND SECURITY
U.S. Customs and Border Protection

ENTRY SUMMARY CONTINUATION SHEET

1. Filer Code/Entry No.
9PS 1163908-9

27. Line No.	28. Description of Merchandise 29. A. HTSUS No. B. AD/CVD Case No.	30. A. Gross weight B. Manifest Qty.	31. Net Quantity in HTSUS Units	32. A. Entered Value B. CHGS C. Relationship	33. A. HTSUS Rate B. AD/CVD Rate C. IRC Rate D. Visa No.	34. Duty and I.R. Tax Dollars	Cents
	BROUGHT FORWARD			175798		18188.76	
002	AIR COMPRESRS,TURBO/SPR CHARGE 9903.01.25 8414.80.0500	10	1NO	10000 C24	10%	1000.00	
	MERCHANDISE PROCESSING FEE				0.3464%	34.64	
	TOTAL EV INV. 00001 185798.00		TEV$	185798		19223.40	

Contract/ PO Date	Contractor	PCS Number	Value/Budget	Description	Department	Originating Country	Ad Varlorem Rates	On Pause Rate	HTS Code	Estimated Anticipated Additional	Exception	Date of Entry	Notes
4/19/2024	Corrected Electron Optical Systems GmbH	600000-05818	$1,044,095.00	Transmission Electron Microscope Energy Filtering and Imaging Device	Research - Materials Science Institute	Germany	20%	10%	9012.90.00	$104,409.50	No	N/A	Dept has not yet identifed funding for all of additional tariff costs.
4/14/2025	Andor Technology / Oxford Instruments America Inc	600000-06465-PO	$20,718.00	ZL41 5.5 CaneraLink	Research - Materials Science Institute	Northern Ireland/UK	20%	10%	8525.80.40	$2,071.80	No	N/A	
N/A	N/A	110400-01742-PO	$357,510.00	Reactive Ion Etcher	Knight Campus	Japan	24%	10%	8486.20.00	$35,751.00	Maybe	N/A	Awarded, but PO has not been issued.
11/21/2024	ID Quantique Inc.	600000-06214-PO	$182,733.00	Superconducting Nanowire Single Photon Detector System	Research - Center for Optical Molecular & Quantum Science	Switzerland	31%	10%	9027.50.8060	$18,273.30		4/10/2025	Paid to clear customs 4/14/2025
N/A	N/A	600000-06340-RFP	$473,700.00	Sputtering System	Research - Materials Science Institute	Canada		10%		$47,370.00	Unclear	N/A	Awarded but PO has not been issued.
N/A	N/A	110400-01721-RFQ	$73,860.00	Stylus Profilometer	Knight Campus			10%		$7,386.00		N/A	
N/A	N/A	110400-01724-RFP	$375,000.00	Direct Write Lithography Tools	Knight Campus			10%		$37,500.00		N/A	
N/A	N/A	110400-01727-RFP	$400,000.00	Manual Mask Aligner	Knight Campus			10%		$40,000.00		N/A	
N/A	N/A	110400-01735-RFQ	$200,000.00	Semiconductor Parameter Analyzer	Knight Campus			10%		$20,000.00		N/A	
4/15/2025	Datrose, Inc.	470000-00928-O (Am	$315,000.00	Automated Package Locker System	UO Housing	China	145%	145%	Varies	$456,750.00	No	N/A	Tariff rates to be at actuals when delivered and only for the components that have those charges.
										$769,511.60			